



POLICE DEPARTMENT

March 10, 2025

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In the Matter of the Charges and Specifications :

- against - :

Police Officer John Gonzalez :

Tax Registry No. 936681 :

123 Precinct :

Case No.

2022-27678

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Deanna Everett-Johnson, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Michael Martinez, Esq.
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck [the complainant] with a police vehicle without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

2. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, wrongfully used force, in that PO Gonzalez struck an individual with a police vehicle without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

3. Police Officer John Gonzalez, on or about October 15, 2021, at approximately 2147 hours, while assigned to the 123 Precinct and on duty, in the vicinity of Hylan Boulevard & Sharrott Avenue, Richmond County, abused his authority as a member of the New York City Police Department, in that PO Gonzalez damaged [the complainant's] property without sufficient legal authority.

A.G. 304-06, Page 1, Para 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 5, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement of the complainant, as well as Body-Worn Camera footage of the incident. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

On the evening of October 15, 2021, Respondent was standing beside his parked RMP in Richmond County when he observed two motorcycles speed past him. One of the motorcycles did not have a license plate, and so Respondent, who was by himself, entered his RMP and pursued that vehicle as it proceeded toward Hylan Boulevard. The motorcycle was being operated by an individual (“the complainant”), and there was a female rear passenger as well. It is alleged that several minutes later, Respondent wrongfully used force in that he intentionally struck the complainant and the passenger with his RMP, and that he damaged the motorcycle without sufficient legal authority to do so. Respondent maintains that he did not deliberately strike the motorcycle, and suggests that the motorcycle may have fallen to the ground as it attempted a U-turn maneuver through a narrow space.

The complainant, who has a pending civil lawsuit against Respondent in connection with this matter, did not appear to testify at trial. Instead, the CCRB introduced into evidence a recording of a telephone interview conducted with the complainant on October 25, 2021, along with the accompanying transcript. (CCRB Exs. 1 & 1A) It is well-settled that hearsay evidence is admissible in administrative proceedings, and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross examine, and the court can observe witness demeanor. In the absence of live testimony from the complainant here, this tribunal carefully considered his prior statement, in conjunction with the other evidence presented at trial.

In his statement, the complainant admitted that the motorcycle he was operating was neither registered nor insured, had no license plate affixed, and his driver’s license was

suspended. Nevertheless, he took the bike out for a “quick joyride” with a female passenger, who was seated behind him, along with a friend who was riding a separate motorcycle. As they were passing Respondent’s parked police car, the complainant’s friend, who was riding ahead, revved his engine and sped off. Respondent started chasing the complainant, who also sped up to approximately 45-50 mph. The complainant stated that he made a right turn onto Hylan Boulevard, noticed that Respondent had turned his lights on, and the pursuit continued for several blocks to the intersection of Sharrott Avenue. The complainant, who was in the far right lane, came to a stop. The police car approached in the left lane, and another vehicle was stopped at the light between them. Respondent screamed over the microphone to the complainant, telling him he could either receive a ticket or get arrested. The complainant stated that he decided he would try to “lose the cop.” (CCRB Ex. 1A at 7, 11, 13, 16-20, 25-29, 33-34, 40)

In an effort to get away, the complainant turned his motorcycle around, and slowly tried to pass through the small gap between the police car and the other vehicle, in order to escape in the opposite direction. According to the complainant, he released his clutch to allow his motorcycle to roll between the two vehicles. As he passed between them, the police car slowly reversed into him, tipping the motorcycle over. The female passenger was able to jump off the motorcycle, but the complainant’s right leg was pinned between the bumper of the RMP and the motorcycle, and his left leg was stuck underneath the bike. Respondent placed the complainant in handcuffs. According to the complainant, his back and both of his legs were injured from the collision, and the engine of his motorcycle was cracked. After his arraignment, the complainant went to the hospital, where X-rays were taken and he was told his bones were intact. (CCRB Ex. 1A at 5, 35-38, 43-44, 46, 49-51, 55-56, 65, 73-74)

Video footage from Respondent's Body-Worn Camera ("BWC") does not capture whether there was any impact between the RMP and the motorcycle while it was still upright, nor does it show how the motorcycle wound up on the ground with the complainant pinned beneath it. The footage does show Respondent turning his steering wheel and angling his RMP to the right and coming to a stop at the intersection. (CCRB Ex. 8 at 0:48) A second later, Respondent appears to reverse the RMP a few feet, come to a stop, move slightly forward, and put the car in park. As Respondent emerges from his vehicle, the complainant can be heard screaming loudly in pain, with his motorcycle on top of him. The female passenger is standing safely off to the side. Respondent handcuffs the complainant, then lifts the motorcycle and helps the complainant to his feet. Photographs in evidence show damage to the rear of the RMP (CCRB Ex. 4), as well as to the motorcycle (CCRB Ex. 5). Additional photographs show some bruising in the area of the complainant's feet. (CCRB Ex. 6) Copies of two Motor Vehicle Accident Reports also were admitted. (CCRB Ex. 2, Resp. Ex. A)

Respondent testified that he initially followed the motorcycle from a distance of about five-to-six car lengths behind. He observed the motorcycle cross over a double-yellow line into the oncoming traffic lane. Respondent pulled his RMP parallel to the motorcycle and signaled him to pull over, but the complainant sped off, driving approximately 50-55 miles per hour and running several red lights. Rather than speed after the complainant, Respondent chose to pull back and follow him from a safe distance. (Tr. 30-32, 44-45)

At the intersection of Hylan and Sharrott, Respondent saw the complainant "hit his brakes" while traveling in the far-right bike lane. Respondent testified that he believed the complainant was about to make a right turn, so Respondent accelerated into the intersection, around a car in the right lane that was stopped at the light, in order to block the motorcycle from

making the turn. Respondent stopped his RMP, looked around, but could not locate the motorcycle, and so he assumed the complainant had made a U-turn and was proceeding in the direction from which they had just come. Respondent testified that he began to reverse his RMP with the intention of turning his vehicle around as well, when he immediately heard a scream behind him. He stopped reversing, moved the RMP slightly forward, then put the car in park. Respondent exited his vehicle, and observed the motorcycle on the ground toward the rear passenger side of the RMP. The complainant was trapped under the motorcycle, and the female passenger was standing on the sidewalk. Respondent placed the complainant in handcuffs and lifted the motorcycle off him. The complainant declined the offer of an ambulance, and was transported to the stationhouse for arrest processing. There was damage to the RMP's rear bumper on the passenger side, and the motorcycle had a gas leak and could not be started. (Tr. 33-38, 46-50, 52-53, 64-68, 75-77)

Respondent testified that he did not feel any impact between his RMP and the motorcycle as he was backing up, and did not believe he struck the bike while it was upright and knocked it to the ground. He suggested that when the complainant made the tight U-turn he may have "wiped out" before the RMP backed up. Respondent acknowledged that he probably backed over the motorcycle while it was on the ground and out of his view, but he insisted he did not intentionally strike the complainant or his motorcycle with the RMP. (Tr. 38-40, 51, 60-62)

Specification 1 alleges that Respondent wrongfully used force by backing his RMP into the complainant, while Specification 2 alleges the same misconduct with respect to the unnamed motorcycle passenger. It is the position of the CCRB that Respondent intentionally reversed his RMP into the complainant's motorcycle, thereby causing it to tip over. Respondent, in contrast, insists that he did not deliberately strike the motorcycle with his vehicle.

It is unclear from the evidence how exactly the motorcycle wound up on the ground. The video footage does not capture how it occurred. The complainant claimed that it was due to Respondent deliberately backing his RMP into the motorcycle, but I am not persuaded as to the reliability of his hearsay narrative. The complainant did not appear at trial, and so the defense did not have the chance to question him about his suspended license, the lack of a license plate, as well as his open warrant, and how those factors motivated his actions that day, including his decision to flee the police. There was no opportunity to confront the complainant about the details of how precisely his motorcycle fell to the ground, and whether the tight U-turn he made affected his ability to maintain control of his bike. The complainant did not have to answer questions about whether he had an interest in fabricating his account in order to shift responsibility for what occurred onto Respondent, who currently is the subject of a lawsuit filed by the complainant.

Additionally, the BWC footage showing the inside of the RMP does not depict the type of jolt one might have expected to see if Respondent had just knocked down an upright motorcycle. Also, the footage shows the female passenger standing safely off to the side, away from the motorcycle, with no indication that she had just been a passenger on an upright motorcycle that was struck by another vehicle.

Respondent, meanwhile, testified in a detailed, credible manner about what transpired. He maintained that he did not believe he struck the upright motorcycle, causing it to fall to the ground. This was not a version of events that Respondent told, for the first time, at trial. Rather, in the immediate aftermath of the incident, Respondent informed his supervisor that he did not strike the motorcycle while it was upright, and that the complainant must have fallen when he tried to make the U-turn. (CCRB Ex. 8 at 25:06, 26:49) That same account appears in the

narrative portion of the official Police Accident Report as well. (Resp. Ex. A) Respondent acknowledged that as he reversed his RMP, he may have made contact with the bike *after* it already was on the ground.

The CCRB has the burden of proving, by a preponderance of the credible evidence, that Respondent wrongfully used force by intentionally striking the complainant and the passenger on the motorcycle. Based on the totality of the evidence presented, including the hearsay account provided by the complainant, I am not persuaded that Respondent intentionally collided with the complainant. Although it is clear that a motor vehicle accident occurred, and that there was damage to the RMP and motorcycle, not all such accidents rise to the level of misconduct. Here, there was insufficient proof to establish that Respondent wrongfully used force against the complainant and the female passenger by reversing his RMP into the upright motorcycle. The CCRB has failed to meet its burden, and I find Respondent Not Guilty of Specifications 1 and 2.

Specification 3 alleges that Respondent wrongfully damaged the complainant's motorcycle. It is undisputed that there was damage to the motorcycle: aside from the photographs in evidence, the complainant stated that the engine was cracked, and Respondent conceded that the gas tank was leaking, and the motorcycle could not be restarted.

At issue is whether the damage was the result of misconduct on the part of Respondent. In his hearsay statement, the complainant suggested that Respondent deliberately backed into the motorcycle, while Respondent, at trial, denied any such intent, credibly explaining that when he lost sight of the motorcycle, he began reversing his RMP with the intention of turning around.

As discussed above, the evidence was unclear as to the exact sequence of events leading to the motorcycle being damaged. Again, not all motor vehicle accidents resulting in damage are the result of misconduct, and under these specific circumstances, the evidence did not establish

that the damage to the motorcycle was due to misconduct on the part of Respondent. The CCRB has failed to meet its burden of proving, by a preponderance of the evidence, that Respondent abused his authority as a member of the Department by wrongfully damaging the complainant's motorcycle. Accordingly, I find Respondent Not Guilty of Specification 3.

Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED

APR 24 2025


JESSICA S. TISCH
POLICE COMMISSIONER